

Line 2

Case Name: *Chad Hutson v. Sam Anderson*

Case No.: 24CV444270

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Sam Anderson (“Defendant” or “Mr. Anderson”) moves under Code of Civil Procedure Section 437c for Summary Judgment or, in the alternative, Summary Adjudication on all claims alleged in the Complaint of Plaintiff Chad Hutson (“Plaintiff”) on the grounds that there are no triable issues of material fact, and Plaintiff cannot establish any of the essential elements of his claims. Notice of Motion (the “Motion”) at p. 2.¹ (filed: Feb 4, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to Plaintiff’s Complaint, on January 29, 2024, Chad Hutson was assaulted and battered near West Valley Elementary School on his way to his home. Mr. Hutson pulled up his motorcycle behind Mr. Anderson’s BMW, which was stopped in front of a crosswalk blocking the road and traffic. Mr. Hutson honked the horn, but Mr. Anderson did not move his car. Mr. Hutson maneuvered his motorcycle around the BMW and proceeded toward his home. (Complaint ¶ 5)

Mr. Anderson followed Mr. Hutson aggressively. At the intersection of Dalles and Belleville, Mr. Anderson stopped his car, approached Mr. Hutson’s motorcycle, grabbed the handlebars, and began shaking it. Suddenly Mr. Anderson swung at Mr. Hutson connecting with his helmet, kicked him several times, and continued to attack him while on the ground. Mr. Hutson was held down by Mr. Anderson and another driver until police arrived. (Complaint ¶ 5)

Plaintiff initiated this action by filing Plaintiff’s Complaint on July 31, 2024, alleging only two causes of action for:

¹ As this Motion was not filed on pleading papers with line numbers, the Court in this Order cites only to page numbers.

1. First Cause of Action: Assault & Battery;
2. Second Cause of Action: Intentional Infliction of Emotional Distress.

(Complaint ¶¶ 7-15).

II. Legal Standard

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code. Civ. Proc. § 437c, subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code. Civ. Proc. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence that is admissible under the rules of evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (*Id.* at p. 840.)

III. Request for Judicial Notice

Mr. Anderson requests judicial notice of the following:

- “Court records in case No. 24CV452806, including the complaint filed by Plaintiff alleging that Sunnyvale police officers caused the injuries he claims here. (Motion, p. 8 ¶ 1)

Regarding these court records, Defendant’s Motion for Judicial Notice is **GRANTED IN PART**. Mr. Anderson seeks judicial notice of unspecified court records. Apart from the Complaint filed in this case, Mr. Anderson has not submitted any other court record. Therefore the Court’s ruling is limited to judicially noticing the existence of the Complaint. The Court, however, cannot take judicial notice of the truth of facts or hearsay statements in the complaint. (See, *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal. App. 4th 875, 882; see also *Stormedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 456, n. 9, [“When judicial notice is taken of a document ... the truthfulness and proper interpretation of the document are disputable.”].) So the Court takes Judicial Notice of the existence of the Complaint.

- Police Report No. 24-856, Incident No. 240290141

Regarding this Police Report, Defendant’s Request for Judicial Notice is **DENIED**. Neither the police report nor the statements contained therein are subject to judicial notice because such a report is reasonably subject to dispute. (See Evid. Code §452(h); *People v. Jones* (1997) 15 Cal.4th 119, 171, fn. 17 [“we decline to take judicial notice of the truth or accuracy of an entry in a police report, because such a report is reasonably subject to dispute”].)

IV. Analysis of Defendant’s Motion for Summary Judgment or Summary Adjudication

A. First Cause of Action for Assault & Battery

“The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he] was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm.” (*Yun Hee So v. Sook Ja Shin* (2013) 212 Cal.App.4th 652, 668-69.) “The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (*Id.* at p. 669.)

Mr. Hutson alleges that on January 29, 2024, he was assaulted and battered by Mr.

Anderson when he passed the West Valley Elementary School on his way home. Allegedly, Mr. Anderson had blocked the traffic, thus forcing Mr. Hutson to maneuver his motorcycle around Mr. Anderson's vehicle. This escalated to a verbal and physical confrontation between the parties. (Complaint ¶ 5)

Mr. Anderson contends (1) he acted in self-defense and (2) Mr. Hutson cannot establish a causal link between his acts of self-defense and his alleged injuries. Mr. Anderson submits his supporting declaration to establish that Mr. Hutson was the aggressor who initiated the confrontation. Mr. Anderson testifies that while he was lawfully present at the West Valley Elementary School to pick up his child, Mr. Hutson drove his motorcycle aggressively around his vehicle, blocked the traffic, refused to move his motorcycle, and prevented him from moving forward. Mr. Hutson initiated a verbal confrontation, struck Mr. Anderson, threatened to kill him and produced a pocket-knife in a threatening manner. Fearing that he would be stabbed, Mr. Anderson used his bare hands to block Mr. Hutson. Upon arrival of Sunnyvale Police Officers, Mr. Hutson was the sole party arrested at the scene. (Anderson Decl. ¶¶ 1-14)

To support lack of causal connection, Mr. Anderson submits a copy of Mr. Hutson's separate complaint against the City of Sunnyvale, in which he alleges that he was injured as a result of police officers' use of force in arresting him for the altercation that ensued with Mr. Anderson on January 29, 2024. (RJN, Ex. B)

Notably, Mr. Hutson does not submit any Opposition papers contesting Mr. Anderson's arguments and Declaration on the issue that there is no evidence that Mr. Anderson caused Mr. Hutson any damages and on the issue that Mr. Anderson acted in self-defense.

To prove self-defense, Mr. Anderson must establish (1) he reasonably believed that Mr. Hutson was going to harm him and (2) he used only the amount of force that was reasonably necessary to protect himself. (See, CACI 1304; *Vaughn v. Jonas* (1948) 31 Cal.2d 586, 600.)

Mr. Anderson's unopposed Declaration sufficiently establishes both elements satisfying Mr. Anderson's burden of proof. The burden thus shifts to Mr. Hutson to present evidence establishing a triable issue of fact with this regard. But Mr. Hutson has not filed an opposition and thus fails to meet his burden.

Accordingly, the Court **GRANTS** Defendant's Motion for Summary Adjudication on the Assault & Battery Cause of Action.

B. Second Cause of Action for Intentional Infliction of Emotional Distress

The elements for a cause of action for intentional infliction of emotional distress are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiffs

suffering severe or extreme emotional distress; and (3) an actual and proximate causal link between the tortious conduct and the emotional distress. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

To satisfy the element of extreme and outrageous conduct, defendant's conduct “must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780, quoting *Trerice v. Blue Cross of California* (1989) 209 Cal.App.3d 878, 883.) “[I]t is not enough that the defendant has acted with an intent which is tortious or even criminal, or that he has intended to inflict emotional distress, or even that his conduct has been characterized by 'malice,' or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort.” (*Cochran v. Cochran* (1998) 65 Cal. App.4th 488, 496.) “Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.” (*Ibid.*)

After carefully considering the entire record and all the evidence presented, the Court finds and rules that there is no evidence and no triable issue of fact that Mr. Anderson is liable for intentional infliction of emotional distress against Mr. Hutson.

Moreover, the Court finds and rules that Plaintiff's Second Cause of Action for Intentional Infliction of Emotional Distress is premised on Plaintiff's First Cause of Action for Assault & Battery. So if the First Cause of Action fails, so does the Second Cause of Action. Here, as the Court above GRANTED Defendant's Motion for Summary Adjudication in favor of Defendant on the First Cause of Action, the Court likewise GRANTS Summary Adjudication in favor of Defendant on the Second Cause of Action.

For all these reasons, the Court **GRANTS** Defendant's Motion for Summary Adjudication on the Intentional Infliction of Emotional Distress Cause of Action.

V. Conclusion & Order Granting Summary Judgment

As the Court above has **GRANTED** Summary Adjudication in favor of Defendant and against Plaintiff on every Cause of Action in Plaintiff's Complaint, as a matter of logic and law the Court hereby **GRANTS Summary Judgment in favor of Defendant Sam Anderson and against Plaintiff Chad Hutson on all claims in Plaintiff's Complaint.**²

SO ORDERED.

² The Court further **ORDERS** Plaintiff Chad Hutson and Defendant Sam Anderson to appear in person at the July 10, 2026 Hearing at 9:00 AM in Department 16 regarding this ruling.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *Wells Fargo Bank, N.A. v. Saeed Alampaykar*

Case No.: 24CV454356

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.430 to deem the truth of all matters specified in the Requests for Admissions, Set One, served on September 17, 2025, to be admitted by Defendant Saeed Alampaykar (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed Dec. 12, 2025).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on September 17, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 1:23-2:7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on September 17, 2025, is deemed admitted by Defendant Saeed Alampaykar.**